

Dock Workers (Safety, Health and Welfare) Scheme, 1961

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Union of India - Act

Dock Workers (Safety, Health and Welfare) Scheme, 1961

UNION OF INDIA

India

Dock Workers (Safety, Health and Welfare) Scheme, 1961

Rule DOCK-WORKERS-SAFETY-HEALTH-AND-WELFARE-SCHEME-1961 of 1961

Published on 20 June 1961

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Dock Workers (Safety, Health and Welfare) Scheme, 1961

Published vide Notification No. S.O. 1540, dated the 20th June, 1961, Published in the gazette of India, Part 2, Section 3(i), dated the 1st July, 1961.

2068.

Part I ? General

1.

Short title, extent and commencement.

- This Scheme may be called the Dock Workers (Safety, Health and Welfare) Scheme, 1961.

(2)

It shall apply to major ports.

(3)

It shall come into force on the 1st October, 1961, except paras. 12(2), 16, 19, 20 and 21 which shall come into force on such date or dates as may be notified in the official Gazette, by the Central Government.

2.

Definitions.

- In this Scheme, unless the context otherwise requires,-

(1)

"Act" means the Dock Workers (Regulation of Employment) Act, 1948 (9 of 1948

);

(2)

"competent person" for the purpose of paras. 32 to 35 means an official of workshop in India approved for any of the specified purpose in respect of testing, examination, annulling or certification of plant, lifting machinery or gear by the Central Government or by an authority nominated by the Central Government in that behalf, and includes any other person who is recognised as a "competent person" for the purpose of the national regulation in other countries for the implementation of the protection against Accidents (Dockers) Convention (Revised), 1932, adopted by the International Labour Conference ;

(3)

"dock" means any dock, wharf or quay and shall include any warehouse or store-place belonging to owners, trustees or conservators of, and situated in or in the vicinity of, the dock, wharf or quay and any railway line or siding on or used in connection with the dock, wharf or quay but not forming part of a State Railway ;

(4)

"form" means a form appended to the Scheme ;

(5)

"Inspector" means any person appointed under Section 6 of the Act ;

(6)

"Port Authority" means the person having the general management and control of dock, provided that if any other person has, by exclusive right to occupation of any part of a dock, acquired the general management and control of such port, he shall be deemed to be the "Port Authority" in respect of that port;

(7)

"schedule" means a schedule appended to this Schedule ;

(8)

the words "dock workers" and "employer" have the meanings assigned to them under the Act.

3.

Powers of Inspectors.

(1)

An Inspector may enter with such assistance (if any), as he thinks fit, any dock or vessel where dock workers are employed and -

(i)

inspect, examine any building, plant, machinery, appliance or equipment used in connexion with the loading, unloading, movement or storage of cargoes in connexion with the preparation of ship or other vessels for the receipt or discharge or cargoes or leaving port;

(ii)

examine any register or other document relating to the employment of dock workers;

(iii)

take on the spot or otherwise the statements of any persons or hold enquiries which he may consider necessary for carrying out the purpose of this Scheme, provided that no person shall be compelled to answer any question or give any evidence tending to incriminate himself.

(2)

The Port Authorities, the employers of dock workers and owners of machinery or plant shall afford all reasonable facilities to the Inspector for entry, inspection, examination or enquiry under this Scheme.

4.

Notice of accidents and dangerous occurrences.

(1)

Notice of any accident in a dock which either-

(a)

cause loss of life to a dockworker, or

(b)

disables a dock worker from work on which he was employed for the rest of the day or shift in which the accident occurred, shall forthwith be sent by telegram, telephone, special messenger or written message, within four hours of the occurrence, to -

(i)

the Inspector notified for the purpose;

(ii)

the relatives of the dock workers when the accident causes loss of life to the dock worker or is likely to disable the dock worker from work for more than ten days ; and

(iii)

in the case of fatal accidents only-

(a)

the officer in charge of the nearest police station, and

(b)

the District Magistrate or if the District Magistrate by order so directs, the Sub-divisional Magistrate :

Provided that a notice of any accident of which notice is sent in accordance with the requirements of the Explosives Act, 1884 (

4 of 1884

), or the Petroleum Act, 1934 (

30 of 1934

), or the Indian Dock Labourers Act, 1934, (19 of 1934), need not be sent in accordance with this sub-paragraph.

(2)

In the case of accidents falling under sub-paragraph (1) (b), the injured person shall be given first-aid and thereafter immediately conveyed to a hospital or other place of treatment.

(3)

Where any accident causing disablement is notified under sub-paragraph (1) and after notification thereof results in the death of the dock worker disabled, notice in writing of the death shall be sent to the authorities mentioned in that sub-paragraph immediately when the death occurs.

(4)

The following classes of dangerous occurrences shall forthwith be reported to the Inspector in the manner described in sub-paragraph (1) whether death or disablement is caused or not -

(i)

collapse or failure of a lifting machinery used in raising or lowering of persons or goods, and breakage or failure of ropes, chains or other appliances forming part of lifting machinery or the overturning or displacement of a crane ;

(ii)

collapse or subsidence of any wall, floor, gallery, roof, platform, staging and means of access provided in accordance with this Scheme;

(iii)

bursting of a vessel containing steam under pressure greater than atmospheric pressure other than plant which comes within the scope of the Indian Boilers Act, 1923;

(iv)

explosion or fire causing damage to any room or place, in which dock workers are employed ;

(v)

explosion of a receiver or vessel used for the storage, at a pressure greater than atmospheric pressure, of any gas or gases (including air) or any liquid or solid resulting from the compression of gas.

(5)

Every notice given under sub-paragraph (1) or every report made under sub-paragraph (4) shall be confirmed within seventy-two hours of the occurrence by sending a written report to the Inspector in Form I provided that in case of an accident under C1. (b) of sub-paragraph (1) such written report need be sent only when the dock worker is disabled from work on which he was employed for more than forty-eight hours immediately after the accident.

5.

Notification of certain diseases.

(1)

When a dock worker contracts any disease specified in Schedule I, a notice in Form II shall be sent forthwith to the Inspector.

(2)

If any medical practitioner attends on a dock worker who is or was employed in the dock and who is, or is believed by the medical practitioner to be suffering from any disease specified in the aforesaid Schedule, the medical practitioner shall without delay send, addressed to "Chief Adviser, Factories, Ministry of Labour and Employment, New Delhi", a notice stating the name and full postal address of the patient and the disease which in the opinion of the medical practitioner the patient is suffering from, and the name and other particulars of the dock or of the place in which the patient is or was last employed.

Any medical practitioner who [wilfully suppresses the information required under this sub-paragraph and]

[Inserted by S.O. 3308, dated the 5th September, 1964.]

fails to send any notice in accordance with the requirements of this sub-paragraph shall be liable to fine which may extend up to rupees fifty.

6.

Duties of Port Authorities, etc.

- Save as otherwise expressly provided in this Scheme-

(1)

It shall be the duty of every Port Authority to comply with the provisions under Part II (Health) and Part III (Welfare) of this Scheme and such of the requirements under Part IV (Safety) of this Scheme as affect the safety in the dock or any part of the dock, where dock workers are employed, and of any dock worker in the course of performance of any work in so far as the requirements fall within the scope of the general management and control of the docks in the port.

(2)

(a)

It shall be the duty of every employer of dock workers who by himself, his agents or employees, carries on any of the operations in which dock workers are employed, to comply with the requirements of paras. 4 and 5 under this Part and with such of the requirements under Part IV (Safety) of this Scheme as

(i)

affect any dock worker employed by him in the course of performing any work on his behalf ;

(ii)

relate to any work, act or operation performed or about to be performed by such employer.

(b)

it shall also be the duty of every employer of dock workers who by himself, his agents or employees, erects or alters any staging or works or uses machinery or plant or part thereof to which this Scheme applies, to comply with such of the requirements under Part IV (Safety) of this Scheme as relate to the erection or alteration of the staging and to work or use the machinery or plant in manner which complies with the provisions relating thereto under Part IV (Safety) of this Scheme.

(3)

It shall be the duty of the owner of machinery or plant to erect, install, and maintain the machinery or plant in a manner which complies with the provisions relating thereto under Part IV (Safety) of this Scheme.

(4)

It shall be the duty of every dock worker to comply with the requirements of such paragraphs as relate to the performance of an act by him and to operate in carrying out the requirements of this Scheme, and if he discovers any defect in the dock, staging, machinery or plant, to report such defect without unreasonable delay to his employer, his foreman or other person in authority.

7.

Other obligations of dock workers.

(1)

No dock worker shall wilfully interfere with or misuse any means, appliance, convenience or other equipment provided in pursuance of this Scheme, for the purposes of securing the health, safety or welfare of the dock workers, and where any means appliance, convenience or equipment for securing health, safety or welfare is provided for the use of any dock worker under this Scheme, he shall use the means, appliance, convenience or equipment. No dock worker shall wilfully and without reasonable cause of anything likely to endanger himself or others.

(2)

No dock worker shall, unless duly authorised or in case of any emergency, remove or interfere with any fencing, plant or machinery, ladder, life-saving means or appliances, lights, staging or other things whatsoever required to be provided under this Scheme. If removed, such things shall be restored at the end of the period during which their removal was authorised or at the end of the emergency, as the case may be, by the persons last engaged in the work that necessitated such removal.

Part II ? Health

8.

Cleanliness.

- Every place in the dock where dock workers are employed and all areas in the dock which are in proximity to the place in the dock where dock workers are employed, shall be kept clean and free from rubbish or effluvia arising from any drain, privy or other nuisance.

9.

Drinking water.

(1)

In every dock, effective arrangements shall be made to provide and maintain at suitable points conveniently situated for all dock workers employed therein a sufficient supply of wholesome drinking water.

(2)

All such points shall be legibly marked "drinking water centre" in a language understood by a majority of the dock workers employed in the dock and no such point shall be situated with 6 metres (20 feet) of any washing place, urinal or latrine unless a shorter distance is approved in writing by the Inspector.

(3)

In every dock, the drinking water supplied to dock workers shall during hot weather every year, be cooled by ice or other effective method :

Provided that if ice is placed in the drinking water, the ice shall be clean and wholesome and shall be obtained only from a source approved in writing by the Health Officer of the Port.

(4)

The drinking water centres shall be sheltered from the weather and adequately drained.

(5)

Every drinking water centre shall be maintained in a clean and orderly condition and, if necessary, shall be in charge of a suitable person who shall distribute the water. Such person shall be provided with clean clothes while on duty.

(6)

Storage tanks or containers shall be always kept in clean and hygienic condition.

(7)

The Inspector may by order in writing direct the Port Authority to obtain, at such time or at such intervals as he may direct, a report from the Health Officer of the Port as to the fitness for human consumption of the water supplied to the workers, and in every case to submit to the Inspector a copy of such report as soon as it is received from the Health Officer.

10.

Latrines and urinals.

(1)

In every dock, sufficient latrine and urinal accommodation shall be provided and shall be conveniently situated and accessible to dock workers at all times while they are at work.

(2)

Separate enclosed accommodation shall be provided for male and female workers wherever female workers are likely to be employed. Such accommodation shall be adequately lighted and ventilated.

(3)

The floors and internal walls up to a height of at least 90 cm. (3 feet), of the latrines and urinals and the sanitary blocks shall be laid on glazed tiles or otherwise finished to provide a smooth-polished impervious surface.

(4)

All such accommodation shall be maintained in a clean and sanitary condition at all times. The floors, portions of the walls of sanitary blocks up to a height of 90 cm. (3 feet) so laid or finished as to provide smooth-polished impervious surface and the sanitary pans of latrines and urinals shall be thoroughly swept and cleaned at least once a day with suitable detergents or disinfectants or with both.

(5)

Every latrine shall be under cover and so partitioned off as to secure privacy, and shall have a proper door and fastenings.

(6)

The walls, ceiling and partitions of every latrine and urinal shall be whitewashed or colour-washed and the whitewashing or colour-washing shall be repeated at least once in four months :

Provided that this sub-paragraph shall not apply to latrines and urinals, the walls, ceilings or partitions of which are laid in glazed tiles or otherwise finished to provide a smooth-polished impervious surface and that they are washed with suitable detergents and disinfectants at least once in four months.

(7)

Where piped water supply is available a sufficient number of water taps, conveniently accessible shall be provided in or near such latrine accommodation.

(8)

When piped water supply is not available, provision shall be made to store adequate quantity of water near the latrine.

11.

Spittoons.

(1)

In every warehouse or store-place in a dock where dock workers are likely to be employed there shall be provided a sufficient number of spittoons in convenient places and they shall be maintained in a clean and hygienic condition.

(2)

No person shall spit within such warehouse or store-places except in the spittoons provided for the purposes and a notice containing this provision and the penalty for its violation shall be prominently displayed at suitable places.

(3)

Whoever spits in contravention of sub-paragraph (2) shall be punishable with fine not exceeding five rupees.

(4)

The spittoons shall be of the following types :

(a)

a galvanized iron container with a conical funnel-shaped cover. A layer of suitable disinfectant liquid shall always be maintained in the container ; or

(b)

a container filled with dry, clean sand, and covered with a layer of bleaching powder ; or

(c)

any other type approved by the Inspector.

(5)

The spittoon mentioned in sub-paragraph 4(a) shall be emptied, cleaned and disinfected at least once every day ; and the spittoon mentioned in sub-paragraph 4(b) shall be cleaned by scrapping out the top layer of sand as often as necessary or at least once every day.

12.

Lighting.

(1)

All places in a dock where dock workers are employed and dangerous parts of the regular road or pathway over the dock forming the approach to any place from the nearest highway, shall be safely and efficiently lighted.

(2)

The general illumination in areas on the dock where dock workers have to pass shall be at least 5 lux (0.5 ft. candle) and at places where dock workers are employed, the illumination shall be at least 20 lux (2 ft. candles), without prejudice to the provision of any additional illumination needed at particularly dangerous places.

(3)

The means of artificial lighting shall, so far as is practicable, be such as to prevent glare or formation of shadows to such an extent as to cause risk of accident to any dock worker.

13.

Ventilation and temperature.

- Effective and suitable provision shall be made in every dock for securing and maintaining in every building or an enclosure where dock workers are employed adequate ventilation by the circulation of fresh air, and such temperature and air movement as will secure to dock workers therein reasonable conditions of comfort and prevent injury to health.

Part III ? Welfare

14.

Washing facilities.

(1)

In every dock, adequate and suitable facilities for washing shall be provided and maintained for the use of dock workers employed therein and such facilities shall be conveniently accessible and shall be kept in a clean and orderly condition.

(2)

The washing facilities shall include,-

(i)

(a)

trough with taps or jets at intervals of not less than 60 cm. (2 ft.) or

(b)

wash-basins with taps attached thereto ; or

(c)

taps on stand-pipes ; or

(d)

circular troughs of the fountain type ; and

(ii)

where dock workers are exposed to skin contamination by poisonous, infections or irritating substances or oil, grease or dust showers controlled by taps.

(3)

The Inspector may, having regard to the needs and habits of the dock workers, fix the scale in which the aforementioned type of facilities shall be installed in any dock.

(4)

(a)

Every trough an basin shall have a smooth-impervious surface and shall be fitted a waste pipe.

(b)

The floor ground under and in the immediate vicinity of every trough, tap, jet, wash-basin, stand-pipe and shower shall be so laid or finished as to provide a smooth-impervious surface and shall be adequately drained.

(5)

The water supply to the washing facilities shall be adequate having regard to the number of dock workers employed in the dock, and shall be from a source approved in writing by the Health Officer of the Port.

15.

First-aid appliances.

(1)

In every dock, there shall be provided and maintained so as to be readily accessible during all working hours a sufficient number of first-aid boxes or cupboard : provided that the distance of the nearest first-aid box or cupboard shall be not

more than 200 m. (one furlong) from any working place.

(2)

Nothing, excepting appliances or requisites for first-aid shall be kept in the boxes and cupboards referred to in sub-paragraph (1) and all such boxes and cupboards shall be kept in the charge of a responsible person who is trained in first-aid treatment and who shall always be readily available during working hours.

(3)

Each first-aid box or cupboard shall be distinctly marked "FIRST-AID" and shall be equipped with the articles specified in Schedule II :

Provided that where an Inspector is of the opinion that owing to the number of first-aid boxes or cupboards provided and the availability of extra facilities, such as, well-equipped ambulance room; the standard prescribed in the said Schedule may be relaxed, he may, subject to confirmation by the Central Government, issue a certificate in writing, specifying the extent which the relaxation is given :

Provided further that before revoking a certificate the Inspector shall give the Port Authorities a reasonable opportunity to make its representation.

(4)

A sufficient number of standard Army Pattern of "Furley" telescopic handle stretchers complete with slings shall be provided at convenient places so as to be readily available in an emergency.

16.

Ambulance room.

- In every dock or in any part of a dock where more than five hundred dock workers are ordinarily employed, there shall be provided and maintained an ambulance room, which shall be in charge of a qualified nurse who shall always be readily available during working hours and the ambulance room shall be in overall charge of qualified medical practitioner.

(2)

The ambulance room shall be separate room used only for the purpose of first-aid treatment and rest. It shall have a floor area of at least 10 sqm. (100 sq. ft.) and smooth, hard and impervious walls and floor and shall be adequately ventilated and lighted by both natural and artificial means. An adequate supply of wholesome drinking water shall be provided and the room shall be equipped with the articles specified in Sch. III.

(3)

A record of all cases of accident and sickness treated at the ambulance room shall be kept and produced to the Inspector when required.

17.

Ambulance carriage.

- There shall be provided for use at every dock at which the total number of dock workers at any time exceed fifty, a suitably constructed motor ambulance carriage or launch maintained in good condition for the purpose of the removal of serious cases of accident or sickness, unless arrangements have been made for obtaining such a carriage or launch when required from a hospital or other place situated not more than 3 km. (two miles) from the dock, and in telephone communication therewith.

18.

Notices.

- Notice shall be exhibited in prominent position at every dock stating-

(a)

the position of each first-aid box or cupboard and the place where the person in charge thereof can be found.

(b)

the position of the ambulance room, the stretchers or other appliances, and

(c)

the position of the ambulance carriage or, where it is not provided the position of the nearest telephone and the name and telephone number of the hospital or other place from which such carriage may be obtained.

19.

Canteens.

(1)

In any dock or in any part of a dock wherein more than two hundred and fifty dock workers are ordinarily employed, an adequate canteen in or near the dock, shall be provided and maintained, for the use of the dock workers, and shall function at all time when twenty-five or more dock workers are employed at a time.

(2)

The Port Authority shall submit for the approval of Inspector plans and site-plan, in duplicate, of the building to be constructed or adapted for use as a canteen.

(3)

An adequate number of mobile canteens shall be provided at every dock with provision for serving tea and light refreshments.

(4)

The Central Government may prescribe the standards of accommodation and catering facilities to which the canteen shall conform.

20.

Shelters or rest-sheds and lunch-rooms.

(1)

In every dock, wherein more than one hundred and fifty dock workers are ordinarily employed, adequate and suitable shelters or rest-rooms and suitable lunch-rooms, with provision for drinking water where dock workers can eat meals brought by them shall be provided at convenient places and maintained for the use of the dock workers :

Provided that any canteen maintained in accordance with the provisions para. 19 shall be regarded as part of the requirements of this sub-paragraph :

Provided further that, where a lunch-room is provided, no dock worker shall eat any food in the precincts of the dock except in such lunch-room.

(2)

The shelters of rest rooms and lunch-rooms to be provided under sub-paragraph (1) shall be sufficiently lighted and ventilated and shall be maintained in a cool and clean condition.

21.

Welfare Officers.

(1)

In every dock, wherein five hundred or more dock workers are ordinarily employed there shall be employed such number of Welfare Officers as may prescribed by the Central Government.

(2)

The Central Government may prescribe the duties, qualifications and conditions of service of officers employed under sub-paragraph (1).

Part IV ? Safety

Wharves, Quays, Yards and Approaches

22.

Surface.

(1)

Every regular approach over a dock which dock workers have to use for going to or from a working place on shore and every such working place shall be

(i)

kept adequately clear, as far as practicable from objects that can cause slipping, falling or stumbling;

(ii)

kept free from slipping owing to rain or oil by cleaning or may be made safe by strewing sand, ashes, saw-dust or by other suitable means, and

(iii)

maintained generally with due regard to the safety of the dock workers.

(2)

All areas of a dock shall be kept properly graded in order to facilitate safe access to warehouses and store-places and safe handling of cargo and equipment.

(3)

Drain pools and catch basins shall be kept covered or enclosed.

(4)

All areas of dock and all approaches on which motor vehicles are used, shall be soundly constructed, surfaced with good-wearing material and sufficiently even to afford safe transport of cargo, and shall be properly maintained.

23.

Fencing of dangerous places.

(1)

The following part of a dock and approaches shall, as far as practicable having regard to the traffic and working, be securely fenced so that the height of the fence shall be in no place less than 75 cm. (2 ft. 6 Inseted), and the fencing shall be maintained in good condition :

(a)

All breaks, dangerous corners, and-other dangerous part or edges of a dock ;

(b)

both sides of such foot ways, over bridges, caissons, and dock gates as are in general use by dock workers and each side of the entrance at each end of such footway for sufficient distance not exceeding 4.5 m. (5 yds.) :

Provided that in case of fences which were constructed before the date of commencement of this Scheme, it shall be sufficient if the height of the fence is no place less than 68 cm. (2 ft. 3 inches).

(2)

Ditches, pits, trenches for pipes and cables and other hazardous openings and excavations shall be securely covered or adequately fenced.

(3)

Where wharves and quays slope steeply towards the water, the outer edge shall be protected as far as practicable.

24.

Clearance of passages.

(1)

Cargo shall not be stored or vehicles so placed on any areas of a dock where dock workers are employed as to obstruct access to gangways, cranes and similar appliances and buildings.

(2)

Where any space is left along the edge of any wharf or quay it shall be at least 90 cm. (3 ft.) wide and shall be kept clear of all obstructions other than fixed structures, plant and appliances in use.

25.

Gates.

- Where working areas of a dock are enclosed and the traffic warrants, a separate gate or passage shall be provided for pedestrians.

Warehouses and Store-places

26.

Construction.

- All floors, steps, stairs, passages and gangways of warehouses and store-places shall be of sound construction and properly maintained.

27.

Floor loading.

(1)

The maximum load per square metre to be carried by any floor of a warehouse or store-place and maximum load of any vehicle used on such floor shall be posted up at conspicuous places.

(2)

These maximum loads shall not be exceeded.

28.

Stairs.

(1)

For every staircase in a warehouse or store-place, a substantial handrail of a height of at least 90 cm. (3 ft.) shall be provided and maintained, which, if the staircase has an open side, shall be on that side, and in the case of a staircase

having two open sides, such a handrail shall be provided and maintained on both sides.

(2)

Any open side of staircase shall also be guarded by the provision and maintenance of lower rail or other effective means.

29.

Openings.

- All openings in floors and walls shall, in so far as they present danger, be effectively protected.

30.

Means of escape in case of fire.

(1)

All warehouses and store-places shall be provided with sufficient means of escape in case of fire for the dock workers employed therein and all the means of escape, other than the means of exit ordinarily used, shall be distinctively marked in a language understood by the majority of the dock workers.

(2)

A free passageway giving access to each means of escape in case of fire shall be maintained for the use of all dock workers.

(3)

In every dock there shall be provided effective and clearly audible means of giving warning in case of fire to every dock worker employed therein.

Lifting Machinery and Gear

31.

Construction and maintenance.

(1)

In any dock, all parts, including the working gear, whether fixed or movable of every lifting machinery and every chain, ring, hook, shackle, swivel or pulley block used in hoisting or lowering shall be -

(i)

of good construction, sound material, adequate strength and free from defects ;

(ii)

properly maintained ; and

(iii)

thoroughly examined once at least every 12 months and particulars of such examination entered in the register approved by the Inspector.

Explanation.-For the purpose of this sub-paragraph, thorough examination means a visual examination supplemented, if necessary, by other means such as a hammer test, carried out as carefully as the conditions permit, in order to arrive at a reliable conclusion as to the safety of the parts examined; and, if necessary for the purpose, parts of the lifting machinery and gear shall be dismantled.

(2)

No lifting machinery and no chain or other appliance shall, except for the purpose of test, be loaded beyond the safe working load which shall be plainly marked thereon.

32.

Testing.

(1)

No lifting machinery and no chain, ring, hook, shackle, swivel or pulley block shall be used in hoisting or lowering unless it has been tested and examined by a competent person in the manner set out in Schedule IV and a certificate of such test and examination in the form approved by the Inspector obtained.

(2)

All lifting machinery and all chains, rings, hooks, shackles, swivels, any pulley blocks which have been lengthened, altered or repaired by welding or otherwise shall, before being again taken into use for hoisting or lowering, be adequately re-tested and re-examined by a competent person and a certificate of such test and examination in the form approved by the Inspector obtained.

33.

Annealing.

- All chains, rings, hooks, shackles and swivels used in hoisting or lowering shall, unless they have been subjected to such other treatment as the Inspector may, subject to the confirmation by the Central Government, approve, be effectually annealed under the supervision of a competent person and at the following intervals :

(i)

12.5 mm. (half-inch) and smaller chains, rings, hooks, shackles and swivels in general use, once at least in every six months ;

(ii)

all other chains, rings, hooks, shackles and swivels in general use once at least in every twelve months :

Provided that in the case of such gear used solely on cranes and other hoisting appliances worked by hand twelve months shall be substituted for six months in Cl. (i) and two years for twelve months in Cl. (ii). :

Provided also that where an Inspector is of opinion that owing to the size, design, material or infrequency of use of any such gear or class of such gears, the requirement of this paragraph as to annealing is not necessary for the protection of dock workers, he may, by a certificate in writing and subject to confirmation by the Central Government, exempt such gear of class of gear from such requirement subject to such conditions as may be specified in such certificate.

Particulars of such annealing shall be entered in a register approved by the Inspector.

34.

Special gear.

- Nothing in the foregoing paragraph shall apply to the following classes of chains and gear :

(1)

chains made of malleable cast-iron ;

(2)

plate link chains ;

(3)

chains, rings, hooks, shackles and swivels made of steel ;

(4)

pitched chains ;

(5)

rings, hooks, shackles and swivels permanently attached to pitched chains, pulley blocks or weighing machines ;

(6)

hooks and swivels having screw-threaded parts or ball-bearings or other case-hardened parts ; and

(7)

Bordeaux connections.

Chains and gear aforementioned shall be thoroughly examined by a competent person once at least in every 12 months and particulars of examination entered in the register approved by the Inspector.

35.

Ropes.

- No rope shall be used in hoisting or lowering unless it is of suitable quality and free from patent defects and, in the case of wire ropes it has been tested and examined by a competent person in the manner set out in Schedule IV and a certificate of test and examination in the form approved by the Inspector obtained.

36.

Drivers of cranes, etc.

- No person under 18 years of age and no person who is not sufficiently competent and reliable shall be employed as driver of the lifting machinery, whether driven by mechanical power or otherwise or for giving signals to a driver.

Transport Equipment and Operations

37.

Cargo platforms.

(1)

Cargo platforms (except those formed by cargo itself) shall be made of sound material substantially and firmly constructed, adequately supported and maintained in good repair.

(2)

Cargo platform shall-

- (a)
be of sufficient size to receive cargo and to ensure the safety of dock workers working on them ;
- (b)
if of a height exceeding 1.5 m (5 ft.), in addition to the requirements of (a) above, be protected on any side, which is not being used for receiving or delivering cargo, by substantial fencing to a height of 90 cm. (3 ft.) by upper and lower railing or taut ropes or chains with stanchions ; and
- (c)
be provided with safe means of access, such as, ladders, or stairs.

(3)
Cargo platforms shall not be overloaded.

(4)
Portable trestles shall be so placed as to be steady.

38.
Conveyors.

(1)
Conveyors shall be of sound material, good construction and sufficient strength to support safely the loads for which they are intended and shall be kept in good repair.

(2)
(i)
Conveying machinery shall be so constructed and installed as to avoid hazardous points between moving and stationary parts or object.

(ii)
When a passage way is adjacent to an open conveyor, a clearance of at least 90 cm. (3 ft.) shall be provided.

(3)
When dock workers have to cross over conveyors, regular crossing facilities affording safe passage and adequately lighted shall be provided.

(4)
When conveyors that are not entirely enclosed cross over places where dock workers are employed or might pass beneath them, sheet or screen guards shall be provided to catch any material which might fall from the conveyors.

(5)
Power-driven Conveyors shall be provided at loading and unloading stations, at drive and take-up ends, and at other convenient places, with devices for stopping the Conveyor machinery in an emergency.

(6)
Adequate fencing shall be provided at transfer point.

(7)
Conveyors which carry loads up inclines shall be provided with mechanical devices that will prevent machinery from reversing the loads back towards the loading point in the event of the power being cut off.

(8)
Where two or more Conveyors are operated together, the controlling devices shall be so arranged that no Conveyor can feed on to a stopped conveyor.

(9)
Where the tops of hoppers for feeding Conveyors are less than 90 cm. (3 ft.) above the floors the opening shall be adequately guarded.

(10)
(i)
Where Conveyors extend to points not visible from the control stations, they shall be equipped with gongs, whistles or signal lights, to be used by the operators before starting the machinery so as to warn dock workers who might be in positions of danger.

(ii)
Similar provisions shall be made where necessary to enable the dock workers to communicate with the operator.

(11)

Conveyors shall be provided with automatic and continuous lubrication systems, or with lubricating facilities so arranged that oiling and greasing can be performed without the oilers coming within dangerous proximity to moving parts.

(12)

Conveyors shall be thoroughly inspect done in every three months.

(13)

Dock workers shall not ride on Conveyors.

(14)

Belt Conveyors shall be provided with guards at the ships of belts and drums.

(15)

Intake openings of blowers or exhaust fans for pneumatic Conveyor shall be protected with substantial metal screen or gratings.

(16)

Frames of gravity rollers and chutes shall be kept free of splinters, sharp edges and rough surfaces.

(17)

Gravity rollers and chutes shall be used for the passage of dock workers.

(18)

Sideboards of chutes shall be of sufficient height to prevent cargo from falling off.

39.

Power trucks and hand trucks.

(1)

All trucks and tractor equipment shall be of good material, sound construction, sufficiently strong for the purposes for which it is used and maintained in good repair.

(2)

All truck and tractor equipment shall be inspected at least once a week by maintenance men or other competent person, and when any dangerous defects are discovered in a vehicle, it shall be immediately taken out of service.

(3)

Fork lift trucks shall be equipped with overhead guards adequate to prevent Injury to the operator from falling objects.

(4)

The rated capacity of every lift truck shall be marked on the truck so as to be readily visible.

(5)

Power trucks and tractors shall be operated only by competent and thoroughly trained drivers.

(6)

Power trucks and trailer trucks shall not be loaded beyond their safe-carrying capacity.

(7)

If roads are carried by two or more fork lift trucks working in unison, none of the trucks shall be loaded beyond three-quarters of its safe working load.

40.

Locomotives and wagons.

(1)

Sufficient clearance to ensure safety shall be allowed between structures or piles cargo and railway trucks.

(2)

Locomotive drivers shall act only on signals given by an authorised person : provided that stop signals shall always be acted on irrespective of their source.

(3)

Locomotives pulling or pushing wagons shall move dead slow and shall be preceded by a man on foot when passing through area where dock workers are working.

(4)

Where it is necessary to move railway wagons more than a short distance without a locomotive, wagons shall move dead slow and be preceded by a man on foot when passing through an area where dock workers are working.

(5)

Before moving railway wagons, train crews shall make sure that all dock workers are out of the wagon and the danger zone.

(6)

Cranes, ship's winches and derricks shall not be used to move railway wagons.

(7)

No locomotive or wagon shall be moved on a railway line until an efficient sound signal as a warning has been given by the man preceding it on foot to dock workers whose safety is likely to be endangered, or on approaching any curve where sight is intercepted, or any other point of danger to dock workers.

(8)

Fly shunting in areas where dock workers are employed shall be prohibited and all trains shall be brought to a full-stop before any wagons are cut loose.

(9)

When a railway wagon or a group of wagons not directly connected to a locomotive is being moved, a person shall be appointed to control each wagon or group of wagons.

(10)

As far as practicable, idle wagons shall not be left standing on quays with short distances between them.

(11)

No dock worker shall cross a railway line by crawling or passing underneath a train or wagons or between adjacent wagons thereon where there may be risk of danger from traffic.

(12)

When dock workers are required to work between or beneath railway wagons, they shall be provided with look-out man responsible for giving them any necessary warnings.

(13)

No person under 18 years of age shall be employed as a locomotive driver or a shunter.

(14)

dock workers shall not be inside open wagons when-

(a)

bulk cargo is being handled by means of grabs ; or

(b)

metal stock is being handled by means of electromagnets.

(15)

Where open Wagons with swinging side doors are being emptied near passageways, or walkways, danger signs shall be placed at either end of the exposed sections.

Handling of Cargo

41.

Stacking and unstacking.

(1)

Where stacking, unstacking, stowing or unstowing of cargo or handling in connection therewith cannot be safely carried out unaided, reasonable measures to guard against accident shall be taken by shoring or otherwise.

(2)

Stacking of cargo shall be made on firm foundation not liable to settle and the weight of the cargo shall be as not to overload the floors.

(3)

Cargo shall not be stacked against partition or wall of warehouse or store-places unless it is known that the partition or the wall is of sufficient strength to withstand the pressure.

(4)

Cargo shall not be stacked to such a height and in such a manner as would render the pile unstable.

(5)

Where dock workers are working on stacks exceeding 1.5 m (5 ft.) in height, safe means of access to the stack shall be provided.

42.

Handling objects having sharp and projecting parts.

- Dock workers handling objects with sharp edges, fins, silvers, splinters or similar dangerous projecting parts, shall be provided with suitable protective equipment.

Staging

43.

Material and construction.

(1)

A sufficient supply of sound and substantial material shall be available in a convenient place or places for the construction of staging.

(2)

All the staging shall-

(a)

be securely constructed of sound and substantial material and shall be maintained in such condition as to ensure the safety of all dock workers ; and

(b)

inspected at regular and frequent intervals by a competent person.

(3)

All planks intended to be used for staging shall -

(a)

be carefully examined before being taken into use ; and

(b)

be re-examined before they are used again after the stages have been dismantled, by a person qualified to detect faults in timber.

(4)

All planks forming stages shall be fastened to prevent slipping, unless they extend 54 cm. (18 inches) or more beyond the inside edge of the thwart or support on which they rest.

(5)

All stages shall be of sufficient width, as is reasonable in all the circumstances of the case, to secure the safety of dock workers working thereon. In particular, no stage at a height of 2 m. (6 inches) or more above the ground, dock bottom, deck or tank top, shall be less than [30 cm. (12 inches)]

[Substituted by S.O. 75, dated the 18th December, 1965.]

wide.

(6)

Planks support done the rungs of ladders shall not be used to support stages.

(7)

(a)

Stages suspended by ropes or chain shall be secured as far as possible so as to prevent their swinging.

(b)

Fibre ropes shall not be used for suspending stages except where such stages are suspended from rope reaved through blocks.

[Safe means of access shall be provided for the use of workers to and from stages, Ropes used for suspending stages shall not be used as means of access.]

[Inserted by ibid.]

44.

Restriction on employment.

- No person under 18 years of age shall be required to work on a ship on a stage above the level of the ground.

45.

Precautions against falling material.

- In the case of double banking, where dock workers are required to work on a stage and other dock workers are at work directly beneath such stage, adequate measures shall be taken to prevent the fall of articles or materials. In particular-

(a)

the planks forming a stage on the outside of the ship shall be maintained in such a position that no article or material can fall between them ; and

(b)

the inside plank of the upper stage shall be placed as near as possible to the ship's side and the outer plank shall extend beyond the edge of the stage below.

46.

Lighting.

(1)

All parts of the ship where dock workers are working on stages shall be efficiently lighted.

(2)

If portable lamps, including hand lamps carried by the dock workers, are used for any part of such lighting, they shall be maintained in good condition. Oil lamps shall be provided with properly fitted screw lids or stoppers and be so constructed as to prevent, as far as practicable, the development of leaks, oil or spirit with a flash-point below 23° F. (70° C) (closest) shall not be used for purpose of lighting.

Dangerous Substances and Environments

47.

General precautions.

(1)

Dangerous substances shall only be loaded, unloaded and otherwise handled under the supervision of a competent person who is familiar with the risks and precautions to be taken.

(2)

Special precaution, such as, provision of mats, sling nets, boxes and high-side trays or pallets, shall be taken to prevent breakage of or/damage to containers of dangerous substances during loading, unloading and otherwise handling.

(3)

If containers of dangerous substances are broken or damaged to a dangerous extent, work shall be stopped and the dock workers concerned moved to a safe place until the danger has been eliminated.

(4)

Dock workers loading or unloading or otherwise handling dangerous substances shall, where necessary, be provided with suitable protective equipment.

48.

Corrosive and caustic substances.

(1)

Where corrosive and caustic substances are handled or stored special precautions shall be taken to prevent damage to the containers and render any spillage harmless.

(2)

When during handling of any corrosive or caustic substances there is likelihood of any spillage of the substance, no dock workers shall be allowed to work without wearing suitable protective equipment.

(3)

Dock workers engaged in the removal of damaged containers containing corrosive or caustic substances shall be provided with suitable protective equipment.

49.

Other dangerous substances.

(1)

Before fumigated cargo, such as, grain is loaded or unloaded, adequate measures shall be taken to ensure that the cargo is safe to handle.

(2)

If skins, wool, hair, bones or other animal parts have not been certified as having been disinfected, in particular against anthrax or in cases where a risk of infection is suspected, the dock workers concerned shall -

(a)

be instructed in the risk of infection and the precautions to be taken for example, by cautionary notice or placards ; and

(b)

be provided with suitable protective equipment.

50.

Dust fume, etc.

- In every dock in which by reason of work being carried on by dock workers there is given off any dust or fume or other impurity of such a nature and to such an extent as is likely to be injurious or offensive to the dock workers employed therein, or any dust in substantial quantities, effective measures shall be taken to remove the dust, fumes or other impurities which may be present and to prevent any further ingress thereof, and the employer shall satisfy himself that the space is free from dust, fumes or other impurities and fit for the dock workers to work therein or shall provide the dock workers working therein with suitable protective equipment.

51.

Deficiency of oxygen.

- Before dock workers are permitted to enter tanks or other confined space in which rusting or fermentation of organic substances may have caused deficiency of oxygen, such space shall be tested by suitable means such as with a flame of safety-lamp, for the presence of sufficient oxygen.

52.

Fumigated spaces.

- Before dock workers are permitted to work in a confined space which has been fumigated, the space shall be certified safe by the authority responsible for Fumigation.

Miscellaneous

53.

Machinery.

(1)

In every dock, every fly-wheel and every moving part of any prime-mover and unless they are in such position or of such construction as to be as safe to every dock workers employed as they would be if they were securely fenced, every part of transmission, machinery and every dangerous part of other machinery (whether or not driven by mechanical power) shall be securely fenced.

(2)

Without prejudice to the generality of the provisions of sub-paragraph (1) all motors, cog-wheels, chain and friction gearing, shafting and steam pipe shall be securely fenced so far as is practicable.

(3)

The fencing of dangerous part of machinery shall not be removed while the machinery is in use, but if removed shall be replaced as soon as practicable and in any case before the machinery is taken into normal use again.

(4)

No part of any machinery which is in motion and which is not securely fenced shall be examined, lubricated, adjusted or repaired except by persons duly authorized.

(5)

Machine parts shall only be cleaned when the machine is stopped.

(6)

When machinery is stopped for servicing or repairs, adequate measures shall be taken to ensure that it cannot be inadvertently re-started.

54.

Electrical equipment.

(1)

Only duly authorized person shall be permitted to install, adjust, examine, repair, displace or remove electrical equipment or circuits.

(2)

Efficient and suitably located means shall be provided for cutting off all pressure from every part of the system as may be necessary to prevent danger.

(3)

All portable electric equipment shall be inspected by a competent person at least once in every day of use.

(4)

Electrical equipment exposed to the weather shall be adequately protected against wet or corrosion.

(5)

All non-current carrying metal parts of electrical equipment shall be earthed or other suitable measures shall be taken to prevent them from becoming live.

(6)

Portable electric lamps shall be used only-

(a)

where adequate permanent fixed lighting cannot be provided, and

(b)

at a pressure safe in the particular conditions of work.

55.

Ladders.

(1)

All metal, wooden, rope or other ladders that have to be used by dock workers, shall be of sound material, good construction and adequate strength for which they are intended and shall be properly maintained.

(2)

Wooden ladders shall not be painted but oiled or covered with clear varnish or other transparent preservative.

(3)

Where practicable, ladders shall rise, or be provided with an adequate handhold, to height of 1 m. (3 ft. 3 inch) above the top landing place.

(4)

Portable ladders shall not stand on a loose base.

(5)

Portable ladders shall be properly placed and secured in place.

(6)

No ladder shall be used which has-

(a)

a missing or defective rung ; or

(b)

any rung which depends for its support on nails, spikes or other similar fixing.

(7)

All ladders shall be inspected at suitable intervals by a competent person, and if dangerous defects are found in any ladder, the ladder shall be immediately taken out of service.

56.

Fire protection.

(1)

Places where dock workers are employed shall be provided with -

(a)

sufficient and suitable fire-extinguishing equipment ; and

(b)

an adequate water-supply at ample pressure.

(2)

Persons trained to use the fire-extinguishing equipment shall be readily available during all working hours.

(3)

Fire-extinguishing equipment shall be properly maintained and inspected at suitable intervals.

57.

Rescue.

- Provision of rescue from drowning of dock workers shall be made and maintained , and shall include-

(a)

supply of life-saving appliances, kept in readiness on the wharf or quay which shall be reasonably adequate having regard to all the circumstances ; and

(b)

means at or near the surface of the water at reasonable intervals for enabling a person immersed to support means of escape from the circumstances.

Part V ? Miscellaneous

58.

Saving.

- The provisions of this Scheme shall not operate to the prejudice of the provisions of the Indian Dock Labourers Act, 1934 (19 of 1934) and the Indian Dock Labourers Regulation, 1948, made thereunder.

59.

Penalties.

(1)

Save as otherwise expressly provided in this Scheme whoever being a person whose duty it is to comply with any of the paragraphs in this Scheme contravenes any of its provisions shall be punishable with imprisonment not exceeding three months in respect of a first contravention or six months in respect of any subsequent contravention or with fine not exceeding rupees five hundred in respect of a first contravention or rupees one thousand in respect of subsequent contravention or with both imprisonment and fine as aforesaid.

(2)

Any person who wilfully obstructs an Inspector in the exercise of any of his powers under the Act or fails to produce any register or other document kept in pursuance of this Scheme or conceals or prevents or attempts to prevent any person from appearing before, or being examined by, an Inspector shall be punishable with imprisonment not exceeding three months, or with fine not exceeding rupees five hundred, or with both.

60.

Power to exempt.

- The Central Government may, by notification in the official Gazette, exempt any dock or part of a dock from all or any of the provisions of this Scheme.

I

List of Notifiable Diseases

[See para. 5]

(1)

Lead tetra-ethyl poisoning.

(2)

Manganese poisoning or its sequelae.

(3)

Carbon bisulphide poisoning.

(4)

Benzene poisoning including poisoning by any of its homologous, their nitro or amino-derivative or its sequelae.

(5)

Anthrax.

(6)

Pneumoconosis.

(7)

Poisoning by halogens or halogen derivatives of the hydrocarbon of the aliphatic series.

(8)

Primary epitheliomatous cancer of the skin.

II

Equipment required for a First-aid Box or Cupboard

[See para. 15(3)]

1. A copy of the first-aid leaflet issued by the Chief Adviser, Factories, Ministry of Labour, Government of India, New Delhi.

2. Forty-eight sterilised finger dressings.

3. Twenty-four sterilised hand or foot dressings.

4. Twenty sterilised large or body dressings.
5. Six small, four large and two extra large sterilised burn dressings.
6. Three 15 gms (half ounce) packets sterilised cotton wool.
7. A bottle of two per cent, tincture of iodine.
8. A bottle of sal volatile.
9. Eye-drops prepared as described in the first-aid leaflet.
10. Set of splints, cotton wool for padding.
11. Spool 10 metres by 2.5 cm. (ten yards by one inch), of adhesive plaster.
12. St. John Tourniquet.
13. Eighteen assorted roller bandages in envelopes.
14. Nine triangular bandages in envelopes.
15. Box of safety pins.
16. One pair surgical scissors.
17. [60 grams]

[Substituted by S.O. 677, dated the 20th February, 1967.]
medicine glass.

III

Equipment required for an Ambulance Room

[See para, 16(2)]

(i)

A glazed sink with hot and cold water always available.

(ii)

A table with a smooth top at least 1.8 mm. x 1.0 mm. (6' x 3' x 6").

(iii)

Means of sterilizing instruments.

(iv)

A Couche

(v)

Two standard Army Pattern of "Fuley" telescopic handle stretchers complete with slings.

(vi)

Two buckets or containers with close fitting lids.

(vii)

Two rubber hot water bags.

(viii)

A kettle and spirit stove or other suitable means of boiling water.

(ix)

Twelve plain wooden splints 90 cm. x 10 cm. x 6 mm. (36" x 4" x 1/4").

(x)

Twelve plain wooden splints 35 cm. x 7' 5 cm. x 6 mm. (14" x 3" x 1/4").

(xi)

Six plain wooden splints 25 cm. x 12 mm. (10" x 2" x 1/2").

(xii)

Six woollen blankets.

(xiii)

One pair artery forceps.

(xiv)

Two medium size sponges.

(xv)

Six hand towels.

(xvi)

Four "kidney" trays.

(xvii)

Four cakes carbolic soaps.

(xviii)

Two glass tumblers.

(xix)

Two clinical thermometers.

(xx)

Graduated measuring glass with teaspoon.

(xxi)

One eye bath.

(xxii)

One bottle 1 kg. (2 lb.) carbolic lotion 1 in 20.

(xxiii)

Three chairs.

(xxiv)

One screen.

(xxv)

One electric hand torch.

(xxvi)

Four first-aid boxes or cupboards stocked to standards prescribed in Sch. II.

(xxvii)

An adequate supply of anti-tetanus serum.

(xxviii)

One ice-cap.

(xxix)

One footpath.

(xxx)

One all-glass syringe, 10 cc.

(xxxi)

One all-glass syringe, 2 cc.

IV

Manner of test and examination before taking lifting machinery and gear into use

[See para. 32(1)]

(a)

Every crane and other hoisting machine with its necessary gear shall be tested with a proof load which shall exceed the safe-working load as follows:

Safe working load| Proof load|-

Up to 20[tonnes]

[Substituted by S.O. 672, dated the 20th February, 1967.]

| 2.5 per cent. in excess.|-

20-50[tonnes]

[Substituted by S.O. 672, dated the 20th February, 1967.]

| 5 per cent. in excess.|-

Over 50[tonnes]

[Substituted by S.O. 672, dated the 20th February, 1967.]

| 10 per cent. in excess.

The said proof load shall be hoisted and swung as far as possible in both directions. In the case of a jib crane, if the jib has a variable radius, it shall be tested with a proof load as defined above at the maximum and minimum radii of the jib. In the case of hydraulic cranes or hoists where, owing to the limitation of pressure, it is impossible to hoist a load 25 per cent. in excess of the safe working load, it shall be sufficient to hoist the greatest possible load.

(b)

Every article of loose gear (whether it is necessary to a machinery or not) shall be tested with a proof load at least equal to that shown against the article in the following table :

Article of gear

Proof load

Pitched chains used with hand operated pulley blocks and rings,
hooks, shackles or swivels permanently attached thereto.

One-and-a-half times the safe working load.

Other chains

Twice the safe working load.

Other rings

Other hooks

Others swivels

Hand-operated pulley blocks with pitched chains and rings,
hooks, shackles or swivels permanently attached thereto.

One-and-a-half times the safe working load.

Other pulley blocks

Single sheave block

Four times the safe working load.

Multiple sheave block with safe working load up to and
including up to 20 tons

Twice the safe working load.

Multiple sheave block with the safe working load over 20 tons
up to and 40 tons.

Twenty tons in excess of the safe working load.

Multiple sheave block with the safe working load over 40 tons

One-and-a-half times the safe working load.

Provided that where an Inspector is of opinion that owing to the size, design, construction, material or use of any such loose gear or class of such gear, any of the above requirements are not necessary for the protection of dock, workers, he may, by certificate in writing and subject to confirmation by the Central Government, exempt such gear or class of gear from such requirement, subject to such conditions as may be stated in the certificate.

(c)

After being tested as aforesaid all machines with the whole of the gear accessory thereto and all loose gear shall be examined, the sheaves and the pins of the pulley block being removed for the purpose, to see that no part is injured or permanently deformed by the test.

(d)

In the case of wire rope a sample shall be tested to destruction and the safe working load shall not exceed one-fifth of the breaking load of the sample tested.

[* * *]

[Omitted by S.O. 672, dated the 20th February, 1967.]

Form I

To be sent to Inspector,

Address.....

Report of Accident or Dangerous Occurrence

[See Instructions on page 172-73]

1. Name of employer

2. Address of employer

3. Ship, or other exact place where accident or dangerous occurrence happened

4. Date and hour of accident or dangerous occurrence

5.

(1)

Name and address of injured person Sex..... Age..... Occupation.....

(2)

Nature and extent of injuries (e.g. fatal, loss finger, fracture of leg)

(3)

By whom treatment was given

(4)

Was the injured person disabled from work for more than 48 hours?

6. Hours at which injured person started work

7. Case of accident or dangerous occurrence

8. Accident :

(a)

If caused by machinery, state

(i)

Name of machine and part causing accident

(ii)

If moved by mechanical power at the time

(b)

State exactly what injured person was doing

9. Nature of dangerous occurrence.

Signature

Date

(To be filled in by Inspector)

Port

Date of receipt

Accident/Dangerous

Occurrence No.

Causation

Sex

Remarks

(To be printed in the reverse)

Instruction

Reports of Accidents and Dangerous Occurrences

(1)

Notice of any accident in a dock which either-

(a)

causes loss of life to a dock-worker, or

(b)

disables a dock-worker from work on which he was employed for the rest of the day of shift in which the accident occurred, shall forthwith be sent by telegram, telephone, special messenger or written message within four hours of the occurrence, to

(i)

the Inspector notified for the purpose ;

(ii)

the relative of the dock-worker when the accident causes loss of life to the dock-worker or is likely to disable the dock-worker from work for more than ten days ; and

(iii)

in the case of fatal accidents only-

(a)

the officer-in-charge of the nearest police station, and

(b)

the District Magistrate, or if the District Magistrate by order so directs, the Sub-divisional Magistrate :

Provided that a notice of any accident of which notice is sent in accordance with the requirements of the Explosives Act,

1884 (

4 of 1884

), or the Petroleum Act, 1934 (

30 of 1934

), or the Indian Dock Labourers Act, 1934 (19 of 1934), need not be sent in accordance with the sub-paragraph.

(2)

In case of accident falling under sub-paragraph 1 (b), the injured person shall be given first-aid and thereafter immediately conveyed to a hospital or other place of treatment.

(3)

Where any accident causing disablement is notified under this sub-paragraph and after notification thereof results in the death of the dock-worker disabled notice in writing of the death shall be sent to the authorities mentioned in sub-paragraph (1) immediately the death occurs.

(4)

The following classes of dangerous occurrence shall forthwith be reported to the Inspector in the manner described in sub-paragraph (1) whether death of disablement is caused or not :

(i)

collapse or failure of a lifting machinery used in raising or lowering of persons or goods, and breakage or failure of ropes, chains, or other appliances forming part of lifting machinery or the overturning or displacement of a crane ;

(ii)

collapse or subsidence of any wall, floor, gallery, roof, platform, staging and means of access provided in accordance with the Scheme ;

(iii)

bursting of a vessel containing steam under pressure greater than atmospheric pressure other than plant which comes within the scope of the Indian Boilers, Act ;

(iv)

explosion or fire-causing damage to any room or place in which dock-workers are employed ;

(v)

explosion of a receiver or vessel for the storage, at a pressure greater than atmospheric pressure, of any gas or gases (including air) or any liquid or solid resulting from the compression of gas ;

(5)

Every notice given under sub-paragraph (1) or every report made under sub-paragraph (4) shall be confirmed within two hours of the occurrence by sending a written report to the Inspector in Form I provided that in case of an accident under Cl. (b) of sub-paragraph (1) such written report need be sent only when the dock-worker is disabled from work on which he was employed for more than forty-eight hours immediately after the accident.

Form II

To be filled by Inspector,

No. of case

Remarks

Notice of Poisoning or Disease

(See para. 6)

[See Instructions on page 174-75]

1. Name and address of employer

.....
.....

2. Name of the patient and his work No. if any

3. Address of the patient

4. Precise occupation of the patient

5. State exactly what the patient was doing at the time of contracting disease.....

6. Nature of poisoning or disease from which the patient is suffering

(Signature of the employer)

Date

Reverse side of Form II)

Notification of certain diseases

Extract from para. 5 of the Scheme

1. When a dock-worker contracts any disease specified in Sch. I, a notice in Form II shall be sent forthwith to the inspector.

I

1. Lead tera-ethyl poisoning.
2. Manganese poisoning or its sequelae.
3. Carbon bisulphide poisoning.
4. Benzene poisoning, including poisoning by any of its homologues, their nitro or amino derivatives or its sequelae.
5. Anthrax.
6. Pneumoeonosis.
7. Poisoning by halogens or halogen derivatives of the hydrocarbon of the aliphatic series.
8. Primany epithliomatous cancer of the skin.

Duties of port authorities, etc. under scheme

(Extract from para. 6 of the Scheme)

(2)

(a)

It shall be the duty of every employer of dock workers to comply with the requirements of paras 4 and 5
.....

Related AI tags, queries and research notes

Translation